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CASE #	CASE NAME	HEARING NAME
CVPS2508584	MATTISON VS LOPEZ	DEMURRER ON 1ST AMENDED COMPLAINT FOR AUTO OF ALINA MATTISON BY UBER TECHNOLOGIES, INC.

Tentative Ruling: Hearing continued to Thursday, August 20, 2026 at 8:30 a.m., Department PS2 to be heard with related Motion to Strike on operative 1st Amended Complaint.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2600612	MILLER VS MYERS	DEMURRER ON 1ST AMENDED CROSS-COMPLAINT OF MOUNTAIN COVE CONDO, LLC BY DIANE MILLER

Tentative Ruling: Overruled.

Moving Plaintiff/Cross Defendant to file their answer to operative 1st Amended Cross Complaint of Mountain Cove Condo within 20 days of this order becoming final.

Responding party to provide notice pursuant to CCP 1019.5.

This action arises from Plaintiff and Cross-Defendant Diane Miller's ("Plaintiff") allegations of fraud against Defendants Daniel Beaugy ("Beaugy") and Robert Myers ("Myers").

On January 14, 2026, Plaintiff filed a Complaint against Defendants Beaugy, Myers, Robert Myers Retirement Plan ("Myers Retirement Plan"), REM Capital investments, LLC ("REM Capital"), Mountain Cove Condo, LLC ("Mountain Cove"), Lawyers Title – San Diego Escrow ("LT Escrow"), and Lawyers Title Company ("LTC"), asserting causes of action for: (1) Breach of Contract (as to Myers Retirement Plan only); (2) Elder Abuse – Count I (as to Beaugy only); (3) Elder Abuse – Count II (as to Myers and Myers Retirement Plan only); (4) Fraud (as to Myers, Myers Retirement Plan, REM Capital, and Mountain Cove only); (5) Negligent Misrepresentation (as to Myers, Myers Retirement Plan, REM Capital, and Mountain Cove only); (6) Conversion (as to Myers, Myers Retirement Plan, REM Capital, and Mountain Cove only); (7) Accounting (as to Myers, Myers Retirement Plan, REM Capital, and Beaugy only) and (8) Breach of Fiduciary Duty (as to LT Escrow and LTC only).

In the Complaint, Plaintiff alleges that at all times herein, she was over 65 years old and the owner of real property located at 46855 Mountain Cove 82, Indian Wells, California 92210 ("Property"). Plaintiff alleges that in late 2021 or early 2022, Beaugy began building a relationship of confidence and trust with her. Thereafter, Beaugy convinced Plaintiff to take a loan out against the Property and use the proceeds to invest in a mushroom farm in Escondido, California.

On February 7, 2022, Plaintiff applied for a \$165,000.00 loan from Miramar Financial Group, Inc. ("Miramar Loan"), which recorded a Promissory Note and Deed of Trust against the Property. Plaintiff alleges that Beaugy invested the entire amount in the mushroom farm, and that Plaintiff has never received any proceeds from the Miramar Loan. Plaintiff alleges that Myers is the sole owner and alter ego of Myers Retirement Plan, REM Capital, and Mountain Cove. Plaintiff further alleges that Beaugy owed REM Capital a prior debt that remained unpaid. Accordingly, Plaintiff alleges that Beaugy conspired with Myers to fraudulently use the Property as security for a new loan to pay off Beaugy's debts to REM Capital without Plaintiff's knowledge or consent. Accordingly, on June 24, 2022, Myers, through the Myers Retirement Plan, refinanced the Miramar Loan by opening escrow with LT Escrow. LTC ordered a title policy in conjunction with